

Calendar line 7

Case Name: *Jason Sean v. Associated Plumbing, Inc.*

Case No.: 24CV453851

PLAINTIFF’S MOTION TO COMPEL FURTHER RESPONSES

Plaintiff’s motion to compel further responses to Requests for Production Nos. 7 and 52 seek production of a recorded statement given by Defendant Associated Plumbing’s CEO, Timothy Gorshe, to Defendant’s liability insurer, Federated Insurance, on May 23, 2023.

Defendant objects on the grounds that the recording is protected by the attorney-client privilege and attorney work product doctrine. Defendant submits declarations establishing that the statement was given confidentially and for the purpose of assisting Federated Insurance in evaluating and defending the anticipated claim arising from the incident.

Attorney-Client Privilege

The attorney-client privilege protects confidential communications between a client and lawyer made for the purpose of obtaining or providing legal advice. (Evid. Code, § 954.) In the insurer-insured context, California follows the “prevailing rule” that communications by an insured to a liability insurer may be privileged where the insurer has a duty to defend and the communication is intended for the information or assistance of counsel in defending the insured. (*Travelers Ins. Companies v. Superior Court* (1983) 143 Cal.App.3d 436, 448–449; *Gene Compton’s Corp. v. Superior Court* (1962) 205 Cal.App.2d 365, 379.)

Where a communication has both business and legal purposes, the Court examines the dominant purpose of the communication. (*Holm v. Superior Court* (1954) 42 Cal.2d 500, 507.)

Defendant relies on *Soltani-Rastegar v. Superior Court* (1989) 208 Cal.App.3d 424. There, the Court of Appeal held that an insured’s statement to a liability insurer was privileged even though litigation had not yet been filed and defense counsel had not yet been retained. The court concluded that the absence of filed litigation or retained counsel did not defeat the privilege where the dominant purpose of the communication was to assist in defending against the anticipated claim.

Plaintiff argues the recording was merely part of Federated’s ordinary claims investigation and relies on *Nacht & Lewis Architects, Inc. v. Superior Court* (1996) 47 Cal.App.4th 214, for the proposition that factual statements obtained during an investigation are not necessarily protected work product.

The Court finds *Nacht & Lewis* distinguishable. That case concerned independently prepared witness statements and did not address a communication by an insured to its liability insurer concerning an identified claim for which the insurer had a duty to defend.

Here, the circumstances support Defendant’s showing that the dominant purpose of the recorded statement was preparation for defense of the anticipated claim. Plaintiff’s counsel had already sent a Notice of Representation and Demand to Preserve Evidence before the statement was taken. Thus, at the time of the interview, Federated was not merely investigating an

unknown occurrence; it was evaluating a claim involving a represented claimant and anticipated litigation. Defendant's declarations further establish that the communication was confidential and intended to assist in the defense of the claim.

Accordingly, Defendant has established that the recorded statement is protected by the attorney-client privilege.

Work Product Doctrine

The Court further finds the recording protected by the attorney work product doctrine.

The work product doctrine protects materials prepared by a party or its agent in anticipation of litigation. (*Coito v. Superior Court* (2012) 54 Cal.4th 480, 494–496.) Although witness statements are not categorically protected, *Coito* recognizes that statements obtained by an attorney or an attorney's agent in anticipation of litigation may qualify for protection.

The recorded statement was obtained after Plaintiff had retained counsel, asserted a claim, and demanded preservation of evidence. Federated obtained the statement while evaluating and preparing for potential litigation involving its insured. Plaintiff has not demonstrated a basis to overcome that protection.

Disposition

Because Defendant has established that the recorded statement was a confidential communication made for the purpose of assisting in the defense of an anticipated claim, and because the statement was obtained under circumstances supporting work product protection, the recording is protected from disclosure.

Accordingly, Plaintiff's motion to compel further responses to Requests for Production Nos. 7 and 52 is DENIED.

Defendant to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

Calendar Line 8**Case Name:** *Berkshire Hathaway Homestate Insurance Company v. Andy Le***Case No.:** 25CV471687**PLAINTIFF'S MOTION TO RELATE & CONSOLIDATE**

No opposition received. Good cause appearing, Plaintiff's motion is GRANTED.

Discussion

This action arises from a motor vehicle collision that allegedly occurred on September 8, 2023. Plaintiff Berkshire Hathaway Homestate Companies ("BHHC"), the workers' compensation carrier for Plaintiff Camacho's employer, seeks recovery against Defendant Andy Le pursuant to Labor Code section 3852 for workers' compensation benefits paid and to be paid as a result of injuries allegedly caused by the collision.

Separately, Camacho filed a personal injury action against the same defendants arising from the same incident, *Camacho v. Le, et al.*, Santa Clara County Superior Court Case No. 25CV472800. Both actions remain pending, discovery is ongoing, and no trial date has been set in either matter. No opposition to the present motion has been filed.

Labor Code section 3853 governs situations in which both an injured employee and the employer or workers' compensation carrier prosecute separate actions against the same third-party tortfeasor. The statute provides that where separate actions are brought before trial, they "shall" be consolidated. The purpose of the statute is to ensure that the respective rights of the employee and employer or carrier are adjudicated in a single proceeding, thereby avoiding multiple actions arising from the same injury and preventing inconsistent determinations concerning liability and damages.

The statutory prerequisites are satisfied here. BHHC and Camacho have filed separate actions against the same defendants arising from the same September 8, 2023 motor vehicle collision, and both actions remain pending before trial. Accordingly, consolidation is required under Labor Code section 3853.

Consolidation is also appropriate under Code of Civil Procedure section 1048. The two actions present common questions of law and fact, including the circumstances of the accident, Defendants' alleged negligence, comparative fault, causation, the extent to which the accident aggravated Plaintiff Camacho's preexisting injuries, and the damages attributable to the collision. Separate proceedings would require substantially duplicative discovery, witness testimony, and expert evidence, and would create an unnecessary risk of inconsistent findings on issues common to both cases. Consolidation will promote judicial economy and avoid unnecessary costs and delay. The Court finds no apparent prejudice to any party, particularly where discovery remains ongoing, no trial date has been set, and the motion is unopposed.

Accordingly, Plaintiff's motion is GRANTED.

Order